

Smt. Savita Atanoor vs The State Of Karnataka on 10 February, 2026

Author: V.Srishananda

Bench: V.Srishananda

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NC: 2026:KHC-D:2026

CRL.P No. 100866 of 2025

C/W CRL.P No. 102702 of 2024

CRL.P No. 103394 of 2024

AND 4 OTHERS

HC-KAR

IN THE HIGH COURT OF KARNATAKA AT DHARWAD

DATED THIS THE 10TH DAY OF FEBRUARY, 2026

BEFORE

THE HON'BLE MR. JUSTICE V.SRISHANANDA

CRIMINAL PETITION NO. 100866 OF 2025

(482(CR.PC)/528(BNSS))

C/W

CRIMINAL PETITION NO. 102702 OF 2024

CRIMINAL PETITION NO. 103394 OF 2024

CRIMINAL PETITION NO. 103610 OF 2024

CRIMINAL PETITION NO. 100677 OF 2025

CRIMINAL PETITION NO. 100875 OF 2025

WRIT PETITION NO. 104847 OF 2024 (GM-RES)

IN CRL.P NO. 100866/2025

BETWEEN:

CHANDRASHEKAR

LAXMAN

KATTIMANI

1. SRI. MALLAPPA S/O YAMUNAPPA SAGAR
AGE. 34 YEARS, OCC. BUSINESS,

Digitally signed by

CHANDRASHEKAR

LAXMAN

R/AT. WARD NO. 5, ZANDA GALLI,

KATTIMANI

Date: 2026.02.17

BAGALKOT TQ AND

16:59:14 +0530

DIST. BAGALKOT-587101.

2. SRI RAVI S/O YAMUNAPPA SAGAR
AE. 49 YEARS, OCC. BUSINESS,
R/AT WARD NO. 5, ZANDA GALLI,
BAGALKOT TQ AND DIST. BAGALKOT.

...PETITIONERS

(BY SMT. DEEPA P. DODDATTI, ADVOCATE)

AND:

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CRL.P No. 100866 of 2025

C/W CRL.P No. 102702 of 2024

CRL.P No. 103394 of 2024

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AND 4 OTHERS

1. THE STATE OF KARNATAKA
REP BY ITS POLICE SUB-INSPECCTOR
POLICE STATION , BAGALKOT CEN CRIME PS,
DIST. BAGALKOT-587101
REP BY THE ADDL. STATE PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA ,
DHARWAD BENCH DHARWAD.

2. SRI GOPAL S/O SATTEPPA HITTHALMANI
AGE. 58 YEARS, OCCP. DEPUTY DIRECTOR,
DEPARTMENT OF TOURISM BAGALKOT
R/AT DISTRICT ADMINISTRATIVE BHAVAN
ROOM NO. 137 BAGALKOTE, 587101

...RESPONDENTS

(BY SRI. B.A. BELLIAPPAM, SPP. A/W SMT. KIRTELATA R.
PATIL, HCGP)

THIS CRIMINAL PETITION IS FILED U/SE. 482 OF
CR.P.C.,SEEKING TO QUASH THE PROCEEDINGS INITIATED
AGAINST THE PETITIONERS/ACCUSD NO. 20 AND 21 FOR THE
OFFENCE P/U/SEC. 403, 406, 409 AND 420 OF IPC IN CRIME
NO. 18/2024 IN BAGALKOTE CEN POLICE STATION PENDING
ON THE FILE OF PRINCIPAL SENIOR CIVIL JUDGE AND CJM
BAGALKOTE, IN THE INTEREST OF JUSTICE.

IN CRL.P NO. 102702/2024
BETWEEN:

1. SRI KIRAN S/O. ARUN ZINGADI
AGE. 36 YEARS, OCCP BUSINESS
R/AT HOUSE NO.24 BHAVANI BUILDING,
22 ND CROSS NEAT LION SCHOOL,
VIDYAGIRI BAGALKOT,
TQ AND DIST BAGALKOT-587102.

2. SRI. MANJUNATH S/O RUDRAPPA KOTI
AGE. 36 YEARS, OCCP. BUSINESS
R/AT WARD NO.11, 19TH CROSS, ENG COLLEGE
ROAD,
VIJAY NAGAR BAGALKOT,

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TQ AND DIST BAGALKOT-587102.

3. SRI. SHIVRAJ S/O. THIPPANNA ATANUR
AGE. 33 YEARS, OCCP COOLI
R/AT WARD NO.5, BAGALKOT.
4. SRI. MANJUNATH S/O. NAGAPPA BHOVI
AGE. 46 YEARS, OCCP. PRIVATE EMPLOYEE,
R/AT GANGAI STREET, KUNDAGOL,
TQ KUNDAGOL, DIST. DHARWAD.
5. SMT. SAVITHA D/O. THIPPANNA ATTANUR
AGE. 34 YEARS, OCC. PRIVATE EMPLOYEE
R/AT DODDA SABBANNA ONI,
BAGALKOT TQ AND DIST BAGALKOT.
6. SMT. GEETHA D/O. THIPPANNA ATTANUR
AGE. 32 YEARS, OCCP. PRIVATE EMPLOYEE,
R/AT DODDADA SABBANNA ONI
BAGALKOT, TQ AND DIST. BAGALKOT.

...PETITIONERS

(BY SRI. DEEPA P. DODDATTI, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REP BY ITS POLICE SUB INSPECTOR
POLICE STATION, BAGALKOT CEN CRIME PS
DIST. BAGALKOT 587101
REP BY THE ADDL STATE PUBLIC PROSECUTOR
HIGH COURT OF KARNATAKA
DHARWAD BENCH, DHARWAD.
2. SRI. GOPAL S/O SATTEPPA HITTHALMANI
AGE. 58 YEARS, OCCP DEPUTY DIRECTOR
DEPARTMENT OF TOURISM BAGALKOT
R/AT DISTRICT ADMINISTRATIVE BHAVAN
ROOM NO. 137 BAGALKOT,
TQ AND DIST BAGALKOT.

...RESPONDENTS

(BY SRI. B.A. BELLIPPA SPP. A/W. SMT. KIRITILATA R.

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CRL.P No. 100866 of 2025

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CRL.P No. 103394 of 2024

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AND 4 OTHERS

PATIL, HCGP)

THIS CRIMINAL PETITION IS FILED U/S 482 OF
CR.P.C. (528 OF BNSS), SEEKING TO QUASH THE FIR AND
COMPLAINT INITIATED AGAINST THE
PETITIONERS/ACCUSED NO.11, 12, 16, 17,18 AND 19 FOR
THE OFFENCES PUNISHABLE U/S 403, 406, 409 AND 420
OF IPC IN CRIME NO.18/2024 IN BAGALKOT CEN POLICE
STATION PENDING ON THE FILE OF THE PRL.CIVIL JUDGE
(SR.DN) AND CJM BAGALKOT.

IN CRL.P NO. 103394/2024
BETWEEN:

SRI. MAHESH S/O. PRAKASH JALAWADI
AGE. 37 YEARS, OCC. BUSINESS,
R/AT WARD NO.10, 7TH CROSS,
VINAYAK NAGAR, BAGALKOT,
TQ. AND DIST. BAGALKOT.

...PETITIONER

(BY SRI. DEEPA P. DODDATTI, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REP. BY ITS POLICE SUB-INSPECTOR,
POLICE STATION, BAGALKOT CEN CRIME PS,
DIST. BAGALKOT-587101
REP. BY THE ADDL. STATE PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD.
2. SRI. GOPAL S/O. SATTEPPA HITTHALMANI
AGE. 58 YEARS, OCC. DEPUTY DIRECTOR
DEPARTMENT OF TOURISM BAGALKOT,
R/AT DISTRICT ADMINISTRATIVE BHAVAN,
ROOM NO.137, BAGALKOT,
TQ. AND DIST. BAGALKOT,

...RESPONDENTS

(BY SRI. B.A. BELLIPPA SPP. A/W. SMT. KIRITILATA R.
PATIL, HCGP)

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NOTICE SERVED TO R2)

THIS CRIMINAL PETITION IS FILED U/S 482 OF
CR.P.C., PRAYING TO QUASH THE PROCEEDINGS
INITIATED AGAINST THE PETITIONER/ACCUSED NO. 10
FOR THE OFFENCES P/U/SEC. 403, 406, 409 AND 420 OF
IPC IN CRIME NO.18/2024 ON BAGALKOTE CEN POLICE
STATION PENDING ON THE FILE OF THE PRINCIPAL CIVIL
JUDGE (SR.DN) AND CJM BAGALKOTE, IN THE INTEREST
OF JUSTICE.

IN CRL.P NO. 103610/2024
BETWEEN:

1. SMT. SAVITA ATAN00R
D/O. TIPPANNA ATAN00R,
AGED ABOUT 34 YEARS,
OCC. PRIVATE EMPLOYEE,
R/O. DODDA SABBANNA ONI, BAGALKOT.
2. SHIVARAJ @ SHIVU S/O. TIPPANNA ATAN00R,
AGED ABOUT 26 YEARS,
OCC. COOLIE,
R/O. DODDA SABBANNA ONI, BAGALKOT.
3. SMT. GEETA ATAN00R,
D/O. TIPPANNA ATAN00R,
AGED ABOUT 34 YEARS,
OCC. PRIVATE EMPLOYEE,
R/O. DODDA SABBANNA ONI, BAGALKOT.
4. SRI. MANJUNATH BHOVI,
S/O. NAGAPPA BHOVI,
AGED ABOUT 46 YEARS,
OCC. PRIVATE EMPLOYEE,
R/O. GANGAI STREET,
KUNDAGOL, BAGALKOT.

...PETITIONERS

(BY SMT. DEEPA P. DODDATTI, ADVOCATE)

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C/W CRL.P No. 102702 of 2024
CRL.P No. 103394 of 2024
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AND:

1. THE STATE OF KARNATAKA
REP. BY ITS POLICE SUB-INSPECTOR,
BAGALKOT CEN CRIME POLICE STATION,
DISTRICT. BAGALKOT-587101
R/BY ITS STATE PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD.
2. SRI. MEHABOOB M. TUMBARAMATTI,
S/O. MAINUDDIN,
AGED ABOUT 32 YEARS,
WORKING AS DISTRICT OFFICER,
BACKWARD CLASS WELFARE DEPARTMENT,
ROOM NO.101,
DISTRICT ADMINISTRATIVE BHAVAN,
BAGALKOT, DISTRICT. BAGALKOT-01

...RESPONDENTS

(BY SRI. B.A. BELLIPPA SPP. A/W. SMT. KIRITILATA R.
PATIL, HCGP)
NOTICE SERVED TO R2)

THIS CRIMINAL PETITION IS FILED U/S 482 OF
CR.P.C. (528 OF BNSS), PRAYING TO QUASH THE ENTIRE
PROCEEDINGS IN CRIME NO.23/2024 ON THE FILE OF
PRL.CIVIL JUDGE (SR.DN) AND CJM, BAGALKOT FOR THE
OFFENCES PUNISHABLE U/S 403, 406, 409, 420, 120B,
119, 464, 468, 471 R/W 34 OF IPC, 1860 REGISTERED BY
THE BAGALKOT CEN CRIME POLICE STATION, BAGALKOT,
IN SO FAR AS PETITIONERS/ACCUSED NO.6 TO 9 ARE
CONCERNED, IN THE INTEREST OF JUSTICE.

IN CRL.P NO. 100677/2025
BETWEEN:

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CRL.P No. 103394 of 2024
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SRI. CHANDRASHEKAR ATANOOR S/O TIPPANNA
ATANOOR
AGE. 38 YEARS. OCC. PRIVATE EMPLOYEE
R/O. DODDA SABBANNA ONI, BAGALKOT.

...PETITIONER

(BY SRI. DEEPA P. DODDATTI, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REP.BY ITS POLICE SUB-INSPECTOR
BAGALKOT CEN CRIME POLICE STATION
DISTRICT BAGALKOT-587101
REPRESENTED BY ITS STATE PUBLIC PROSECUTOR
HIGH COURT OF KARNATAKA
DHARWAD BENCH, DHARWAD.
2. SRI MEHABOOB M. TUMBRAMATTI S/O MAINUDDIN
AGE. 32 YEARS, OCC. WORKING AS DISTRICT
OFFICER
BACKWARD CLASS WELFARE DEPARTMENT
ROOM NO.101, DISTRICT ADMINISTRATIVE BHAVAN
BAGALKOT, DIST. BAGALKOT-01.

...RESPONDENTS

(BY SRI. B.A. BELLIAPPA SPP. A/W. SMT. KIRTI LATA R.
PATIL, HCGP FOR R1;
NOTICE SERVED TO R2)

THIS CRIMINAL PETITION IS FILED U/S 482 OF
CR.P.C. (U/S. 528 OF BNSS, 2023) SEEKING TO QUASH
THE ENTIRE PROCEEDINGS IN CRIME NO. 23/2024 ON THE
FILE OF PRINCIPAL CIVIL JUDGE (SR.DN.) AND CJM,
BAGALKOT FOR THE OFFENCES P/U/SEC. 403, 406, 409,
420, 120B, 119, 464, 468, 471 R/W 34 OF IPC, 1860
REGISTERED BY THE BAGALKOTE CEN CRIME POLICE
STATION, BAGALKOTE, IN SO FOR AS
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PETITIONER/ACCUSED NO.5 IS CONCERNED, IN THE
INTEREST OF JUSTICE.
IN CRL.P NO. 100875/2025
BETWEEN:

1. SRI. MANJUNATH S/O RUDRAPPA KOTI
AGE. 38 YEARS, OCC.BUSINESS,
R/AT/ WARD NO. 11, 9TH CROSS ENG COLLEGE ROAD,
VIDYA NAGAR BAGALKOT
TQ AND DIST. BAGALKOT-587102.
2. SRI KIRAN S/O ARUN ZINGADI
AGE. 38 YEARS, OCC. BUSINESS,
R/AT. HOUSE NO. 24, BHAVANI BUILDING
22ND CORSS NEAR LION SCHOOL VIDYAGRI
BAGALKOT TQ AND DIST, BAGALKOT-587102

3. SRI RAVI S/O YAMUNAPPA SAGAR
AGE. 48 YEARS, OCC. BUSINESS,
R/AT HOUSE NO. 95
WARD NO. 05, NEAR SHIRUR AGASI
ZENDA GALLI, VTC BAGALKOT
TQ AND DIST. BAGALKOT-587101.
4. MALLAPPA S/O YAMUNAPPA SAGAR
AGE. 35 YEARS, OCC BUSINESS,
R/O AT HOME NO. 95, WARD NO. 05
NEAR ZENDA GALLI, VTC BAGALKOT,
TQ AND DIST. BAGALKOT-587101.

...PETITIONERS

(BY SRI. DEEPA P. DODDATTI, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REP BY ITS POLICE INSPECTOR,
POLICE STATION , BAGALOT CEN CRIME PS,
DIST.-BAGALKOT-587101
REP BY THE ADDL STATE PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA ,

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CRL.P No. 103394 of 2024

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AND 4 OTHERS

DHARWAD BENCH, DHARWAD.

2. SRI MEHABOOB S/O MYNUDDIN THUMBARAMATTI
AGE. 33 YEAR, OCC. DEUTY DIRECTOR,
DEPARTMENT OF WELFARE OF BACKWARD CLASSES,
R/AT. DISTRICT ADMIISTRATIVE BHAVAN,
ROOM NO. 101, BAGALKOT 587101.

...RESPONDENTS

(BY SMT. KIRTI LATA R. PATIL, HCGP FOR R1 AND R2)

THIS CRIMINAL PETITION IS FILED U/SE. 482 OF
CR.P.C. SEEKING TO QUASH THE PROCEEDINGS INITIATED
AGAINST THE PETITIONERS/ACCUSED NO. 10, 11, 12 AND
15 FOR THE OFFENCES P/U/SEC. 403, 406, 409, 420,
120B, 119, 464, 468, 471, 34 OF IPC IN CRIME NO.
23/2024 IN BAGALKOT CEN POLICE STATION PENDING N
THE FILE OF THE PRINCIPAL SENIOR CIVIL JUDGE AND CJM
BAGALKOT, IN THE INTEREST OF JUSTICE.

IN WP NO. 104847/2024

BETWEEN:

1. GOPALKRISHNA KUPPAN
AGE. YEARS, OCC. MANAGER,
IDBI BANK BAGALKOT BRANCH, BAGALKOT,
PERMANENT
R/O. 2/77, NALLAMPALYAM,
KONNAIYAR, DIST. NAMAKKAL,
STATE. TAMILNADU,
NOW RESIDING AT BAGALKOT, DIST. BAGALKOT.
...PETITIONER
(BY SRI. IRANAGOUDA K. KABBUR, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
R/BY PRINCIPAL SECRETARY,
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DEPARTMENT OF HOME,
REPRESENTED BY ITS PRINCIPAL SECRETARY,
VIKAS SOUDHA, BENGALURU 560001.

2. THE DEPUTY COMMISSIONER, BAGALKOT,
DISTRICT BAGALKOT-587101.
3. THE SUPERINTENDENT OF POLICE BAGALKOT,
DIST : BAGALKOT-587101.
4. THE POLICE SUB-INSPECTOR,
CEN CRIME POLICE STATION,
BAGALKOT, DIST : BAGALKOT-587101.
5. GOPAL S/O SATYAPPA HITTALAMANI
DEPUTY DIRECTOR TOURISM DEPARTMENT,
BAGALKOT,
AGE : 58 YEARS, DIST : BAGALKOT-587101
7. SHIVANAD S/O BALAPPA PATTANASHETTI
DISTRICT OFFICER, MINORITY WELFARE
DEPARTMENT, BAGALKOT,
AGE : 31 YEARS,
R/O : MOULANA AZAD BHAVAN, NAVANAGAR,
BAGALKOT,
DIST. : BAGALKOT-587101.
8. MALLANAGOUDA S/O RAMANAGOUDA BIRADAR

EXECUTIVE ENGINEER, PANCHAYATH RAJ
ENGINEERING DEPARTMENT, BAGALKOT,
AGE : 57 YEARS,
ROOM NO.125, DISTRICT ADMINISTRATIVE OFFICE,
BAGALKOT,
DIST. :BAGALKOT-587101.

9. MEHABOOB S/O MAINUDDIN TUMBARAMATTI
DISTRICT OFFICER, BACKWARD CLASSES
DEPARTMENT, BAGALKOT,
AGE : 32 YEARS,
R/O : DISTRICT MINORITY WELFARE OFFICE, ROOM

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NO.101,
DISTRICT ADMINISTRATIVE OFFICE, BAGALKOT,
DIST : BAGALKOT-587101.

10. SANTOSH S/O MALLAPPA CHARKHANI
DEPUTY DIRECTOR DEPARTMENT OF HANDLOOM AND
TEXTILES
AGE : 40 YEARS, R/O., ROOM NO.140/141, DISTRICT
ADMINISTRATIVE OFFICE, BAGALKOT,
DIST : BAGALKOT-587101.

...RESPONDENTS

(BY SRI. B.A. BELLIAPPA SPP. A/W. SMT. KIRTELATA R.
PATIL, HCGP)

THIS WP IS FILED UNDER ARTICLE 226 OF THE
CONSTITUTION OF INDIA, R/W. 482 OF CR.P.C., 1973
(SEC.528 BNSS) PRAYING TO,

1. ISSUE WRIT OF MANDAMUS OR ANY OTHER ORDER OR
DIRECTION, TO DIRECT THE RESPONDENT NO. 1 TO HAND
OVER THE INVESTIGATION TO THE INDEPENDENT
IMPARTIAL AGENCY LIKE CBI OR OTHER AGENCY IN THE
INTEREST OF JUSTICE. IN,

I) CRIME NO. 18/2024, DATED 11-07-2024 REGISTERED
UNDER SECTION 403,406, 409, 420 IPC, VIDE ANNEXURE-
B.

II) CRIME NO 21/2024, DATED 25/07/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 464, 468, 471 R/W
120B AND 34 IPC, VIDE ANNEXURE C.

III) CRIME NO 22/2024, DATED 25/07/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 464, 468, 471 R/W
34 IPC, VIDE ANNEXURE D.

IV) CRIME NO 23/2024, DATED 03/08/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 119, 464, 468, 471
IPC, VIDE ANNEXURE E.

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V) CRIME NO 24/2024, DATED 03/08/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 468, 471 R/W 120B
IPC, VIDE ANNEXURE F.

REGISTERED BY THE RESPONDENT NO.4 (CEN POLICE
STATION BAGALKOT) PENDING ON THE FILE OF PRINCIPAL
CIVIL JUDGE (SR.DN.) AND CJM COURT BAGALKOT
DISTRICT IN SO FAR AS PETITIONER BANK AND ITS
OFFICIALS ARE CONCERNED.

2. ISSUE A WRIT IN THE NATURE OF CERTIORARI OR ANY
APPROPRIATE WRIT ORDER OF DIRECTION TO QUASH THE.

I) CRIME NO. 18/2024, DATED 11/07/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420 IPC, VIDE ANNEXURE-
B.

II) CRIME NO 21/2024, DATED 25/07/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 464, 468, 471 R/W
120B AND 34 IFC, VIDE ANNEXURE C.

III) CRIME NO 22/2024, DATED 25/07/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 464, 468, 471 R/W
34 IPC, VIDE ANNEXURE D.

IV) CRIME NO 23/2024, DATED 03/08/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 119, 464, 468, 471
IPC, VIDE ANNEXURE E.

V) CRIME NO 24/2024, DATED 03/08/2024 REGISTERED
UNDER SECTION 403, 406, 409, 420, 468, 471 R/W 120B
IPC, VIDE ANNEXURE F.

REGISTERED BY THE RESPONDENT NO.4 (CEN POLICE
STATION. BAGALKOT) PENDING ON THE FILE OF PRINCIPAL
CIVIL JUDGE (SR.DN.) AND CJM COURT BAGALKOT
DISTRICT IN SO FAR AS PETITIONER BANK AND ITS
OFFICIALS ARE CONCERNED.

3. ISSUE ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION WHICH DEEMS FIT TO GRANT BY THIS COURT.

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THESE PETITIONS, COMING ON FOR ADMISSION, THIS
DAY, ORDER WAS MADE THEREIN AS UNDER:

ORAL ORDER

(PER: THE HON'BLE MR. JUSTICE V.SRISHANANDA)

1. Heard Sri Iranagouda K. Kabbur and Smt.Deepa Pavan Doddatti, learned counsel for the petitioners; and Sri B.A. Balliappa, learned SPP for the State, assisted by Smt. Kirtilata R. Patil, learned High Court Government Pleader for the respondent Nos.1 and 2.

2. The prayers in all these petitions are as under:

Wherefore it is prayed that this Hon'ble Court be pleased to quash the proceedings initiated against the petitioners/accused No.20 & 21 for the offences punishable under Section 403,406,409 and 420 of IPC in crime No.18/2024 in Bagalkot CEN Police station pending on the file of the Principal Senior Civil Judge and CJM Bagalkot in the interest of justice and equity.

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Wherefore it is prayed that this Hon'ble Court be pleased to quash the FIR and Complaint initiated against the petitioners/accused No.11,12,16,17,18 and 19 for the offences punishable under Section 403,406,409 and 420 of IPC in crime No.18/2024 in Bagalkot CEN Police station pending on the file of the Principal Civil Judge (Sr.Dn) and CJM Bagalkot in the interest of justice and equity.

Wherefore it is prayed that this Hon'ble Court be pleased to quash the proceedings initiated against the petitioner/accused No.10 for the offences punishable under Section 403,406,409 and 420 of IPC in crime No.18/2024 in Bagalkot CEN Police station pending on the file of the Principal Civil Judge (Sr.Dn) and CJM Bagalkot in the interest of justice and equity.

Wherefore, the Petitioners most respectfully pray that, this Hon'ble Court may be pleased to quash the entire proceedings in Crime No. 23/2024 on the file of Principal Civil Judge (Sr. Dn.) and CJM, Bagalkot for the offences punishable under section 403, 406, 409, 420, 120B, 119, 464, 468, 471 R/w. 34 of Indian Penal Code, 1860 registered by the Bagalkot CEN Crime Police Station, Bagalkot, in so far as Petitioners/Accused Nos.6 to 9 are concerned, in the interest of justice and equity.

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Wherefore, the Petitioner/accused No.5 most

respectfully pray that, this Hon'ble Court may be pleased to quash the entire proceedings in Crime No. 23/2024 on the file of Principal Civil Judge (Sr. Dn.) and CJM, Bagalkot for the offences punishable under section 403, 406, 409, 420, 120B, 119, 464, 468, 471 R/w. 34 of Indian Penal Code, 1860 registered by the Bagalkot CEN Crime Police Station, Bagalkot, in so far as Petitioner/accused No.5 are concerned, in the interest of justice and equity.

Wherefore it is prayed that this Hon'ble Court be pleased to quash the proceedings initiated against the petitioners/accused No.10,11,12 & 15 for the offences punishable under Section 403, 406, 409, 420, 120B, 119, 464, 468, 471, 34 of IPC in crime No.23/2024 in Bagalkot CEN Police station pending on the file of the Principal Senior Civil Judge and CJM Bagalkot in the interest of justice and equity.

WHEREFORE, it is humbly prayed that this Hon'ble Court be pleased to,

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1. Issue Writ of Mandamus or any other Order or Directions, to direct the Respondent No. 1 to hand over the investigation to the independent impartial agency like CBI or other agency in the interest of justice. In,

i) Crime No. 18/2024, dated 11/07/2024 registered under section 403, 406, 409, 420 IPC, vide Annexure B.

ii) Crime No 21/2024, dated 25/07/2024 registered under section 403, 406, 409, 420, 464, 468, 471 R/w 120B and 34 IPC, vide Annexure C.

iii) Crime No 22/2024, dated 25/07/2024 registered under section 403, 406, 409, 420, 464, 468, 471 R/w 34 IPC, vide Annexure D.

iv) Crime No 23/2024, dated 03/08/2024 registered under section 403, 406, 409, 420, 119, 464, 468, 471 IPC, vide Annexure E.

v) Crime No 24/2024, dated 03/08/2024 registered under section 403, 406, 409, 420, 468, 471 R/w 120B IPC, vide Annexure F. registered by the Respondent No.4 (CEN Police Station Bagalkot) pending on the file of Principal Civil Judge (Sr.Dn.) and CJM Court Bagalkot District in so far as Petitioner Bank and its officials are concerned.

2. Issue a writ in the nature of Certiorari or any appropriate Writ Order of direction to Quash the;

i) Crime No. 18/2024, dated 11/07/2024 registered under section 403, 406, 409, 420 IPC, vide Annexure B.

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ii) Crime No 21/2024, dated 25/07/2024

registered under section 403, 406, 409, 420, 464, 468, 471 R/w 120B and 34 IFC, vide Annexure C.

iii) Crime No 22/2024, dated 25/07/2024 registered under section 403, 406, 409, 420, 464, 468, 471 R/w 34 IPC, vide Annexure D.

iv) Crime No 23/2024, dated 03/08/2024 registered under section 403, 406, 409, 420, 119, 464, 468, 471 IPC, vide Annexure E.

v) Crime No 24/2024, dated 03/08/2024 registered under section 403, 406, 409, 420, 468, 471 R/w 120B IPC, vide Annexure F. registered by the Respondent No.4 (CEN Police Station Bagalkot) pending on the file of Principal Civil Judge (Sr.Dn.) and CJM Court Bagalkot District in so far as Petitioner Bank and its officials are concerned.

3. Issue any other appropriate Writ, Order or Direction which deems fit to grant by this Hon'ble Court."

3. The petitioners are shown as accused in Crime No.18/2024 registered at CEN Police Station, Bagalkot. The investigation was subsequently handed over to the CID on 21.08.2024. Thereafter, the CID took up the investigation and substantial progress has been made.

4. During the course of investigation, statement of witnesses have been recorded and documents have been

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collected. The main accused, by name Suraj, an

outsourced employee of IDBI Bank, has been arrested.

5. Based on his voluntary statement, the Investigating Officer was able to seize certain documents. The seized documents were compared with the admitted signatures of all concerned by forwarding the same to a handwriting expert. The report received from the handwriting expert forms part of the case papers and has been placed before the Court today.

6. Taking note of the magnitude of the alleged fraud and the number of persons involved, the investigation has been undertaken in a comprehensive manner. At present, the investigation conducted by the investigating agency appears to be proceeding in the right direction.

7. According to the petitioners, including Gopalakrishnan Kuppan, the Bank has repatriated the defrauded amount to the concerned departments of the Bagalkot District. However, the

investigating agency is yet

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to recover the defrauded amount from the actual

beneficiaries of the fraud. Therefore, merely on the ground that the amount has been repaid by the Bank, innocent officials of the Bank, including the petitioner Gopalakrishnan Kuppan, ought not to be arraigned as accused in the charge sheet.

8. Likewise, Smt. Deepa Pavan Doddatti, learned counsel appearing for the petitioners in the remaining criminal petitions, would contend that the petitioners represented by her are innocent account holders of IDBI Bank, who neither deposited the amounts in question nor issued any instructions to the Bank to transfer the same to the beneficiaries.

9. She would further submit that the alleged transactions are the result of a concoction by the Bank officials, carried out behind the back of the account holders. Therefore, the petitioners are in no way concerned with the alleged fraud and are entitled to appropriate relief.

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10. However, since the investigation is still in progress, it would be too premature at this stage to accept the contentions advanced on behalf of the writ petitioner as well as the accused/petitioners represented by Smt. Deepa Pavan Doddatti in the criminal petitions.

11. Smt. Kirtilata R. Patil, learned High Court Government Pleader, on instructions from the Investigating Officer, would submit that the investigating agency has taken steps to unearth the siphoned funds and has identified certain assets alleged to be the proceeds of the fraud, including a residential house.

12. She would further submit that necessary steps are being taken to safeguard the interests of all concerned.

13. It is further submitted that disclosing the details of the investigation at this stage may adversely affect the ongoing investigation.

14. In the light of rival contentions, this Court perused material on record including investigation papers

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furnished to the court on such it is noticed that prima facie, the efforts made by the Investigating Agency appear to be reasonable, and this Court, at this stage, is satisfied with the progress of the investigation.

15. Hence, this Court is of the considered opinion that the prayers sought in the petitions cannot be granted at this stage. However, after completion of the investigation and filing of the final report, if any adverse material is found against the petitioners and a final report is filed accordingly, it is open to them to challenge the same in accordance with law, if so advised.

16. With the above liberty, the following:

ORDER The petitions are dismissed.

Sd/-

(V.SRISHANANDA) JUDGE AC CT-CMU LIST NO.: 1 SL NO.: 118